

Court Fees (Punjab Amendment) Act, 1999

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Court Fees (Punjab Amendment) Act, 1999

RULE COURT-FEES-PUNJAB-AMENDMENT-ACT-1999 of 1999

Published on 20 July 2009

Commenced on 20 July 2009

[This is the version of this document from 20 July 2009.]

[Note: The original publication document is not available and this content could not be verified.]

Court Fees (Punjab Amendment) Act, 1999

Published vide Notification No. G.S.R. 538(E), dated 20th July, 2009

Ministry of Home Affairs

G.S.R. 538(E). - In exercise of the powers conferred by Section 87 of the Punjab Reorganisation Act, 1966 (31 of 1966), the Central Government hereby extends to the Union territory of Chandigarh, the provisions of the Court Fees Act, 1870 (7 of 1870), as amended by the Court Fees (Punjab Amendment) Act, 1999 (Punjab Act No.7 of 1999) as in force in the State of Punjab on the date of publication of this notification, subject to the following modifications in the Court Fees (Punjab Amendment) Act, 1999, namely :-

Modifications

1.

In sub-section (1) of Section 1, for the words, brackets and figures "the Court Fees (Punjab Amendment) Act, 1999", the

words, brackets and figures "the Court Fees (Punjab Amendment) Act, 1999 as extended to the Union territory of Chandigarh" shall be substituted.

2.

In section 2, for the words and figures "In the Court Fees Act, 1870, in its application to the State of Punjab", the words and figures "In the Court Fees Act, 1870 in its application to the Union territory of Chandigarh" shall be substituted.

3.

Section 3 shall be omitted.

Annexure

The Court Fees (Punjab Amendment) Act, 1999

Received the assent of the Governor of Punjab on the 19th April, 1999 and was published in the Punjab Gazette, (Extraordinary), Legislative Supplement, Part I dated April, 19, 1999/Chaitra 29, 1921.

Punjab Act No. 7 of 1999

An Act further to amend the Court Fees Act, 1870 in its application to the State of Punjab.

Be it enacted by the Legislature of the State of Punjab in the Fiftieth Year of the Republic of India as follows :-

1. Short title and commencement.

(1)

This Act may be called the Court Fees (Punjab Amendment) Act, 1999.

(2)

It shall come into force at once.

2. Amendment of Section 8 of Central Act 7 of 1870.

- In the Court Fees Act, 1870, in its application to the State of Punjab, in Section 8, at the end, for the sign "." the sign ":" shall be substituted and the following proviso shall be added, namely :-

"Provided that the fixed Court fee of one hundred rupees shall be payable on the memorandum of appeal or cross objections before the High Court arising under the Land Acquisition Act, 1894 or any other law for the time being in force for acquisition of land for public purposes."

3. Repeal and Saving.

(1)

The Court Fees (Punjab Amendment) Ordinance, 1999 (Punjab Ordinance No. 1 of 1999) is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken under the principal Act, as amended by the Ordinance referred to in sub-section (1), shall be deemed to have been done or taken under the principal Act, as amended by this Act.

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